

26STCV14839 26STCV14839

County: los-angeles

Division: Civil Law and Motion

Department: 512

Hearing date: 2026-07-30

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Case Number: 26STCV14839 Hearing Date: July 30, 2026 Dept: 512

HEARING DATE: Thurs., July 30, 2026 JUDGE /DEPT: Mkrtchyan/512

CASE NAME: Vitte, et al. v. Mountain View

Congregate COMPL. FILED: 05-08-26

Living, Inc., et al.

CASE NUMBER: 26STCV14839

NOTICE: OK

PROCEEDINGS: DEMURRER

AND MOTION TO STRIKE

MOVING PARTY: Defendants

Mountain View Congregate Living, Inc.; Sunrise Congregate Corp.; and Gurgen
Dumanyan

RESP. PARTY: Plaintiffs Mia Vitte and Oleg
Tverdovsky

DEMURRER WITH MOTION TO STRIKE

(CCP §§ 430.10, et seq.; 435;
436)

TENTATIVE RULING:

Defendants Mountain View

Congregate Living, Inc.; Sunrise Congregate Corp.; and Gurgen Dumanyan's
Demurrer to Plaintiffs' Complaint is OVERRULED.

Defendants

are to file an Answer within 30 days of notice of this ruling.

Defendants' Motion to Strike Portions

of Plaintiff's Complaint is GRANTED as to the request to strike the Complaint's
requests for attorney's fees and DENIED as to the request to strike the
Complaint's requests for costs. The portions of the Complaint requesting
attorney's fees are hereby STRICKEN.

Moving

parties are ordered to give notice.

SERVICE:

☒ Proof of

Service Timely Filed (CRC, rule 3.1300) OK

☒ Correct Address

(CCP §§ 1013, 1013a) OK

☒ 16/21 Court

Days Lapsed (CCP §§ 12c, 1005(b)) OK

OPPOSITION: Filed

on July 17, 2026 ☐ Late ☐ None

REPLY: Filed

on July 21, 2026 ☐

Late ☐ None

ANALYSIS:

I.

Background

On May 8, 2026, Plaintiffs Mia Vitte

and Oleg Tverdovsky ("Plaintiffs") filed the instant action against Defendants Mountain View Congregate Living, Inc; Sunrise Congregate Corp.; Gurgen Dumanyan ("Defendants") and Does 1-50, alleging causes of action for Specific Performance, Declaratory Relief, Quiet Title, and Breach of Contract. The underlying action involves Defendants breach of an agreement between the parties for Plaintiff to purchase Mountain View and Sunrise stock from Defendants.

On June 9, 2026, the Court granted Plaintiffs' application for preliminary injunction and ordered Plaintiffs to post an undertaking of \$30,000 within 30 days. (6/9/26 Orders.)

On June 15, 2026, Defendants filed the instant Demurrer to Plaintiffs' Complaint (the "Demurrer") and Motion to Strike Portions of Plaintiffs' Complaint (the "Motion").

On June 30, 2026, Plaintiffs posted a \$30,000 undertaking for preliminary injunction.

On July 17, 2026, Plaintiffs filed an Opposition to the Demurrer and a request for judicial notice in support of the Opposition.

On July 21, 2026, Defendants filed a Reply to the Demurrer.

No Opposition or Reply to the Motion has been filed.

II.
Request
for Judicial Notice

In Support of the Opposition, Plaintiffs request the Court take judicial notice of the 6/9/26 Order granting a preliminary injunction in this matter. (Opp., Jud. Notice Req., pp. 1-2, Exh. 1.)

After reviewing the moving papers, the Court GRANTS the request. (Evid. Code, § 452, subd. (d).)

III.

Legal

Standard & Discussion

A. Demurrer

“As a general matter, in a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) “A demurrer tests the pleading alone, and not the evidence or facts alleged.” (E-Fab, Inc. v. Accountants, Inc. Servs. (2007) 153 Cal.App.4th 1308, 1315.) As such, the court assumes the truth of the complaint’s properly pleaded or implied factual allegations. (Ibid.) The only issue a demurrer is concerned with is whether the complaint, as it stands, states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.)

A general demurrer may be brought under Code of Civil Procedure section 430.10, subdivision (e) if insufficient facts are stated to support the cause of action asserted or under section 430.10, subdivision (a), where the court has no jurisdiction of the subject of the cause of action alleged in the pleading. All other grounds listed in Section 430.10, including uncertainty under subdivision (f), are special demurrers.

Where a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a pleading can be amended successfully. (Id.; Lewis v. YouTube, LLC (2015) 244 Cal.App.4th 118, 226.) However, “[i]f there is any reasonable possibility that the plaintiff can state a good cause of action, it is error to sustain a demurrer without leave to amend.” (Youngman v. Nevada Irrigation Dist. (1969) 70 Cal.2d 240, 245).

Meet and
Confer

Code of Civil Procedure

section 430.41 requires that “[b]efore filing a demurrer pursuant to this chapter, the demurring party shall meet and confer in person, by telephone, or

by video conference with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer." (Code Civ. Proc., § 430.41, subd. (a).) The parties are to meet and confer at least five days before the date the responsive pleading is due. (Code Civ. Proc., § 430.41, subd. (a)(2).) Thereafter, the demurring party shall file and serve a declaration detailing their meet and confer efforts. (Code Civ. Proc., § 430.41, subd. (a)(3).)

The Demurrer is accompanied by a meet and confer declaration as required by Code of Civil Procedure section 430.41, subdivision (a). (Demurrer, Gourjian Decl.) According to the declaration, defense counsel sent Plaintiffs' counsel meet and confer correspondence to no response. (Demurrer, Gourjian Decl., ¶¶ 2-3, Exh. A.)

The parties failed to meet and confer in person, by telephone, or by video conference, and thus the Court finds the meet and confer requirement is not satisfied. While the Court may not overrule a demurrer for failure to adequately meet and confer (Code Civ. Proc., § 430.41(a)(4)), the Court cautions the parties to abide by their statutory obligations in the future.

Analysis

Defendants

demur to the first, second, third, fourth, and fifth causes of action in the Complaint for failure to state sufficient facts to constitute a cause of action. (Demurrer, pp. 3-4.) Defendants state the first and second causes of action are insufficiently pled because specific performance is a remedy and not a standalone cause of action and, moreover, the Complaint fails to state facts showing performance of their own conditions precedent; the cause of action for declaratory relief is duplicative of breach of contract and quiet title claims; and the Complaint fails to plead facts establishing present title to the subject stock and thus the quiet title causes of action are insufficiently pled. (Demurrer, pp. 7-12.)

In

Opposition, Plaintiffs state the Complaint pleads sufficient facts to state the preliminary injunction causes of action because the Court granted a preliminary injunction based on the Complaint in this matter, and Civil Code section 1440 excuses

Plaintiffs from performing their obligations in light of Defendants' repudiation; the cause of action for declaratory relief is permissibly pleaded in the alternative; and an equitable right to have legal title conveyed to oneself is a valid basis for the quiet title causes of action. (Opp., pp. 2-8.) Should the Court find any defects in the Complaint, Plaintiffs request leave to amend. (Opp., p. 8.)

In Reply, Defendants

state the Court's preliminary injunction order does not resolve the pleading issues in the first and second causes of action; Plaintiffs fail to show that specific performance is an independent cause of action; Plaintiffs' declaratory relief claim remains impermissibly duplicative of other claims; and Plaintiffs' quiet title causes of action still fail because Plaintiffs, at most, seek future transfer of stock, not present, and the Complaint fails to allege the date of which the title determination is sought. (Reply, pp. 1-4.) Defendants also request the Court sustain the demurrer without leave to amend absent Plaintiffs' demonstration of a reasonable possibility of curing the defects. (Reply, p. 5.)

First

and Second Causes of Action – Specific Performance

Here,

the Complaint pleads causes of action for breach of contract, and those causes of action are not challenged by the Demurrer.

" 'Specific performance of a contract

may be decreed whenever: (1) its terms are sufficiently definite; (2) consideration is adequate; (3) there is substantial similarity of the requested performance to the contractual terms; (4) there is mutuality of remedies; and (5) plaintiff's legal remedy is inadequate. [Citations.]' " (Union Oil Co. of California v. Greka Energy Corp. (2008) 165 Cal.App.4th 129, 134.)

The Complaint pleads there is a stock

purchase agreement between the parties with definite terms; Defendants breached the agreement between the parties by refusing to sell 100 percent of stock of Mountain View and Sunrise; a legal remedy is inadequate because Mountain View and Sunrise are unique; and the requested performance is identical to what the stock purchase agreement provides for. (Compl., ¶¶ 16-39.) The Court finds these facts suffice to plead specific performance of a contract.

Further, the Complaint states that Defendants gave notice to Plaintiffs prior to the execution of the agreement that Defendants were refusing to complete the terms of the written agreement between the parties (Compl., ¶ 23), and Plaintiffs “are fully ready to perform all obligations, promises and conditions required of them to be performed in accordance with the terms and conditions of the [Agreements], ... except those obligations which Plaintiffs were prevented or excused from performing.” (See Compl., ¶¶ 28, 35, 57, 62.) The Court finds these allegations suffice to plead Plaintiffs are excused from pleading performance under the contract due to Defendants’ notice to Plaintiffs of their refusal to perform the agreement that was never retracted. (See Civ. Code, § 3394 [“Specific performance cannot be enforced in favor of a party who has not fully and fairly performed all the conditions precedent on his part to the obligation of the other party, except where his failure to perform is only partial, and either entirely immaterial, or capable of being fully compensated, in which case specific performance may be compelled, upon full compensation being made for the default”]; Civ. Code, § 1440 [“If a party to an obligation gives notice to another, before the latter is in default, that he will not perform the same upon his part, and does not retract such notice before the time at which performance upon his part is due, such other party is entitled to enforce the obligation without previously performing or offering to perform any conditions upon his part in favor of the former party”].)

As such, the Court finds the Complaint contains adequate facts to seek specific performance of a contract in this action.

Further, the Court also notes the Court previously granted a preliminary injunction based on the Complaint’s allegations in this matter. (Opp., RJN, Exh. 1.)

To the extent Defendants dispute the characterization of specific performance in the Complaint and assert specific performance is a remedy and not a cause of action and thus the Demurrer should be sustained as to the first and second causes of action, the Court is not persuaded that labels in the Complaint warrant granting the Defendants’ request. Further, Defendants fail to provide any legal authority mandating the Court find otherwise. Finally, the Court notes that, as specific performance is a remedy and not a cause of action, a demurrer is the incorrect

legal tool with which to address Defendants' request to strike this remedy from the Complaint.

For all these reasons, the Demurrer is OVERRULED as to the first and second causes of action.

Third
Cause of Action – Declaratory Relief

The sole challenge Defendants raise to the third cause of action is that it is duplicative of the contract and quiet title theories of relief in the Complaint. (See Demurrer, pp. 9-10.)

However, the Court finds the Declaratory Relief cause of action is an alternative theory of relief in this matter (see *Batta v. Hunt* (2024) 106 Cal.App.5th 295, 304 ["[P]laintiffs can generally plead 'alternative factual allegations relying on alternative legal theories.' "]), and the parties do not dispute that alternative theories are allowed to be pled in a Complaint. (See Opp.: Reply.) While the Court acknowledges that case law supports Defendants' contention that a demurrer is properly sustained for claims for declaratory relief "wholly derivative" of unsupportive claims (see *Ball v. FleetBoston Financial Corp.* (2008) 164 Cal.App.4th 794, 800), such circumstances are not present in this matter, as the claims underlying the declaratory relief, such as breach of contract, are sufficiently alleged.

Further, the Court finds that the cases relied upon by Defendants to challenge the third cause of action are either distinguishable or inapt to the Complaint's allegations in this matter. (See e.g., Demurrer, pp. 9-10, citing *General of America Ins. Co. v. Lilly* (1968) 258 Cal.App.2d 465, 470; *AICCO, Inc. v. Insurance Company of North America* (2001) 90 Cal.App.4th 579, 590; *Snyder v. California Ins. Guarantee Assn.* (2014) 229 Cal.App.4th 1196, 1208.)

For all these reasons, the Demurrer is OVERRULED as to the third cause of action.

Fourth

and Fifth Causes of Action – Quiet Title

A cause of action for quiet title

requires the following elements to be set forth in a verified Complaint: (1) description of the property; (2) plaintiff's title or interest and the basis; (3) defendant's asserting adverse claim or antagonistic property interest; (4) date as of which the determination is sought; and (5) prayer for determination of title. (Code Civ. Proc., § 761.020.)

Here, the verified Complaint describes

the subject property – Mountain View and Sunrise stocks (see Code Civ. Proc., § 761.020; *Hardison v. Corbett* (1942) 55 Cal.App.2d 310, 320-321); Plaintiffs' right to have the legal title of the stocks conveyed to them (see *Baucum v. Le Baron* (1955) 136 Cal.App.2d 593, 595); Defendants' assertion of antagonistic property interest in that Defendants still own title of the stocks; the date as of which the determination is sought e.g., the date of the Complaint (see Code Civ. Proc., § 761.020); and prayer for determination of title. (See Compl., ¶¶ 43-54.)

Thus, the Demurrer is OVERRULED as to the fourth and fifth causes of action.

Accordingly, the Demurrer is OVERRULED in its entirety.

B. Motion to Strike

Defendants move to strike the request

for attorney's fees and costs from the Complaint on the grounds the Complaint fails to allege any contractual, statutory, or other legal basis for the recovery of fees. (See Motion, pp. 2, 4.)

No Opposition was filed.

California law authorizes a party's

motion to strike matter from an opposing party's pleading if it is irrelevant, false, or improper. (Code Civ. Proc. §§ 435, 436.) Motions may also target pleadings or parts of pleadings that are not filed or drawn in conformity with applicable laws, rules, or orders. (Code Civ. Proc. § 436, subd. (b).) The Code of Civil Procedure also authorizes the Court to act on its own initiative to strike matters, empowering the Court

to enter orders striking matter “at any time in its discretion, and upon terms it deems proper.” (Code Civ. Proc. § 436.)

Code of Civil Procedure section 435.5

requires that “[b]efore filing a motion to strike pursuant to this chapter, the moving party shall meet and confer in person or by telephone with the party who filed the pleading that is subject to the motion to strike for the purpose of determining whether an agreement can be reached that resolves the objections to be raised in the motion to strike.” (Code Civ. Proc. § 435.5, subd. (a).) (Emphasis added.)

As an initial matter, the Court finds Defendants failed to satisfy the meet and confer requirement of Code of Civil Procedure section 435.5, as they failed to meet and confer with Plaintiffs’ counsel in person or by telephone. (See Motion, Gourjian Decl.)

Turning to the merits of the Motion, the Court finds that the Motion is unopposed, and thus Plaintiffs fail to identify any statutory or contractual grounds on which to deny the Motion’s request to strike attorney’s fees. (See Code Civ. Proc., § 1021.) Further, the agreements attached to the Complaint do not provide for attorney’s fees. (See Compl., Exhs. A-B; see Code Civ. Proc., § 1717.)

However, the Court does not find the Motion provides adequate legal grounds to strike the request for costs from the Complaint.

Thus, the Motion is GRANTED as to the request to strike the Complaint’s requests for attorney’s fees and DENIED as to the request to strike the Complaint’s requests for costs. The portions of the Complaint requesting attorney’s fees are hereby STRICKEN.

IV.

Conclusion
& Order

For the foregoing reasons,
Defendants Mountain View Congregate Living, Inc.; Sunrise Congregate Corp.; and Gurgun Dumanyan’s Demurrer to Plaintiffs’ Complaint is OVERRULED.

Defendants' Motion to Strike Portions

of Plaintiff's Complaint is GRANTED as to the request to strike the Complaint's requests for attorney's fees and DENIED as to the request to strike the Complaint's requests for costs. The portions of the Complaint requesting attorney's fees are hereby STRICKEN.

Defendants are to file an Answer within 30 days of notice of this ruling.

Moving

parties are ordered to give notice.